

23VECV01132 23VECV01132

County: los-angeles

Division: Civil Law and Motion

Department: W

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Case Number: 23VECV01132 Hearing Date: June 29, 2026 Dept: W

Hearing Date:

Monday, June 29, 2026

Case Name:

Ramin

Yousezadeh, et al. v. Archstone Oak Creek I, LLC, et al.

Case No.:

25VECV01132

MOTIONS

Motion to Compel Initial Responses to Requests
for Production, Set One, Propounded on Plaintiff Katrin Yousefzadeh

Motion to Compel Initial Responses to
Requests for Production, Set One, Propounded on Plaintiff Ramin Yousefzadeh

Motion to Compel Initial Responses to
Special Interrogatories, Set One, Propounded on Plaintiff Katrin Yousefzadeh

Motion to Compel Initial Responses to
Special Interrogatories, Set One, Propounded on Plaintiff Ramin Yousefzadeh

Motion to Compel Initial Responses to Form

Interrogatories, Set One, Propounded on Plaintiff Katrin Yousefzadeh

Motion to Compel Initial Responses to

Form Interrogatories, Set One, Propounded on Plaintiff Ramin Yousefzadeh

Moving Party:

Moving Defendants Archstone Oak Creek I,
LLC, Archstone Oak Creek II, LLC, and Avalonbay Communities, Inc.

Responding Party:

None.

Notice:

Proof of Service for both motions on
March 6, 2026.

Documents:

Moving Defendants' Motion to Compel
Initial Form Interrogatories, Set One, as to Plaintiff Ramin Yousefzadeh –
3/6/26

Declaration of Isaiah Crosby in Support
– 3/6/26

Moving Defendants' Motion to Compel
Initial Form Interrogatories, Set One, as to Plaintiff Katrin Yousefzadeh –
3/6/26

Declaration of Isaiah Crosby in Support
– 3/6/26

Moving Defendants' Motion to Compel
Initial Special Interrogatories, Set One, as to Plaintiff Ramin Yousefzadeh –
3/6/26

Declaration of Isaiah Crosby in Support

– 3/6/26

Moving Defendants' Motion to Compel

Initial Special Interrogatories, Set One, as to Plaintiff Katrin Yousefzadeh

– 3/6/26

Declaration of Isaiah Crosby in Support

– 3/6/26

Moving Defendants' Motion to Compel

Initial Requests for Production, Set One, as to Plaintiff Ramin Yousefzadeh –

3/6/26

Declaration of Isaiah Crosby in Support

– 3/6/26

Moving Defendants' Motion to Compel

Initial Requests for Production, Set One, as to Plaintiff Katrin Yousefzadeh

– 3/6/26

Declaration of Isaiah Crosby in Support

– 3/6/26

Ruling:

The Court GRANTS all

six of Moving Defendants' Motions to Compel Initial Discovery as to Plaintiffs
Katrin and Ramin Yousefzadeh.

The Court GRANTS

Moving Defendants' request for discovery sanctions against Plaintiff Ramin and
his counsel of record in the modified total amount of \$930.00.

The Court GRANTS

Moving Defendants' request for discovery sanctions against Plaintiff Katrin and
her counsel of record in the modified total amount of \$930.00.

Relevant

Background:

This is a habitability case. Plaintiffs Ramin Yousefzadeh and Katrin Yousefzadeh allege that on March 8, 2020, they entered into a rental agreement with Defendants. Defendants in this case are the corporate owners of the rental property, Archstone Oak Creek I, LLC, Archstone Oak Creek II, LLC, the individual owner, Tishman Archstone-Smith, and the corporate leasing entity Avalonbay Communities, Inc. (Moving Defendants are all Defendants except Tishman Archstone-Smith.)

Plaintiffs allege that the apartment they rented from Defendants was uninhabitable from the start. Allegedly, it suffered from severe mold infestations, water damage, inadequate heating, had no working air conditioner, and was infested with rodents. Plaintiffs allege they submitted multiple service requests, but Defendants refused to make repairs.

On February 28, 2025, Plaintiffs brought suit alleging five causes of action: 1) failure to provide habitable dwelling, 2) breach of the covenant of quiet enjoyment, 3) private nuisance, 4) unfair business competition, 5) negligence, and 6) failure to return security deposit.

On August 18, 2025, Moving Defendants propounded multiple initial discovery requests onto both Plaintiffs, including Form Interrogatories, Set One (FROGs), Special Interrogatories, Set One (SROGs), and Requests for Production, Set One (RFPs).

Now, Moving Defendants move to compel answers to these discovery requests.

Analysis:

Motions to Compel
Initial

Moving Defendants moves to compel responses to FROGs, SROGs, and RFPs from Plaintiffs Ramin Yousefzadeh and Katrin Yousefzadeh.

Under CCP § 2030.290, if a party does not respond to a request for interrogatories

in a timely fashion, the requesting party can move to compel responses (CCP § 2030.290 (b).) Similarly, under CCP § 2031.300, if a party does not respond to a request for production in a timely fashion, the requesting party can move to compel production. (CCP § 2031.300 (b).)

Here, Moving

Defendants propounded all six of these discovery requests onto both Plaintiff Katrin and Plaintiff Ramin on August 18, 2025. (Crosby Decl. Re: Katrin SROGs ¶ 3; Crosby Decl. Re: Ramin SROGs ¶ 3.) The original due date for these responses was September 19, 2025. (Id. ¶ 4.) However, both Plaintiffs requested a series of last-minute extensions. (Id. ¶¶ 5, 7.) The final deadline for both sets of responses was November 25, 2025. (Id. ¶ 9.) To date, neither Plaintiff Katrin nor Plaintiff Ramin have provided responses to any of these discovery requests. (Id. ¶ 13.) Additionally, Plaintiffs offer no opposition to either of these motions.

For these reasons,
the Court GRANTS all six of Moving Defendants' Motions to Compel Initial.

Sanctions

Moving Defendants

also request \$810 in discovery sanctions against Plaintiffs and their counsel of record for each of these individual motions. (Mot. to Compel SROGs Re: Ramin, pp. 7:2-9; Mot. to Compel SROGs Re: Katrin, pp. 7:2-9.)

Sanctions are

mandatory in connection with motions to compel Interrogatories or Requests for Production, unless the non-complying party acted with substantial justification or other circumstances make the imposition of the sanction unjust.(CCP §§ 2031.300 (c), 2030.290(c).)

Here, all six of

these motions are unopposed. Thus, Plaintiffs cannot establish that they acted with substantial justification in ignoring these discovery requests. For these reasons, the Court finds that sanctions are appropriate.

However, the Court

finds the amounts requested by Moving Defendants unreasonable. For each motion, Moving Defendants requests 1 hour of work for the motion itself, as well as 2

hours for preparing a Reply and for attending the hearing on this motion.

(Crosby Decl. Re: Katrin ¶ 15; Crosby Decl. Re: Ramin ¶ 15.) Moving Defendant puts their counsel's reasonable hourly rate at \$250 and also requests a \$60 filing fee for each motion. (Ibid.)

The Court has two problems with this request. First, these motions are unopposed, meaning Moving Defendants counsel did not need to spend any time drafting replies. Second, Moving Defendants' two requests for time for attending the hearings on these motions are duplicative. The Court plans to hear these motions at the same time. For these reasons, the Court reduces Moving Defendants' hours for all six of these motions to 1 hour each. This brings Moving Defendants' total reasonable fees to \$310 for each motion.

For these reasons, the Court GRANTS Moving Defendants' request for discovery sanctions against Plaintiff Ramin and his counsel of record in the modified total amount of \$930.00.

The Court also GRANTS Moving Defendants' request for discovery sanctions against Plaintiff Katrin and her counsel of record in the modified total amount of \$930.00.

Conclusion:

The Court GRANTS all six of Moving Defendants' Motions to Compel Initial discovery as to Plaintiffs Katrin and Ramin Yusefzadeh.

The Court GRANTS Moving Defendants' request for discovery sanctions against Plaintiff Ramin and his counsel of record in the modified total amount of \$930.00.

The Court GRANTS Moving Defendants' request for discovery sanctions against Plaintiff Katrin and her counsel of record in the modified total amount of \$930.00.

Defendants to give notice.